NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

C.P. (CAA)-116/ND/2021

IN THE MATTER OF SCHEME OF ARRANGEMENT OF DEMERGER AND AMALGAMATION:

QUICKCALLS PVT. LTD.

... Applicant Company No.1

AND

BHILWARA TELENET SERVICES PVT. LTD.

...Applicant Company No.2

AND

SMARTALK PVT. LTD.

...Applicant Company No.3

AND

PROCALL PVT. LTD.

...Applicant Company No.4

AND

ARRAY TEAM CALL PVT. LTD.

...Applicant Company No.5

Order Delivered on: 17.12.2021

Section: 230 to 232 of the Companies Act, 2013

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MR.ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

MR. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

PRESENT

For the Applicants : Adv. Vikrant Rohilla

ORDER

AS PER MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Arrangement (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of April 01.04.2019.

2. As per the averments, the Registered offices of all the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion seeking direction for dispensing with the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-75/ND/2020 under Sections 230-232 of the Companies Act, 2013 and vide order dated 06.10.2020 directions were issued to dispense with the convening and holding of the meetings of Unsecured Creditors of the Applicant Companies. Subsequently, vide

order dt. 14.07.2021, directions were issued by this Tribunal to convene the meetings of the Equity Shareholders on 31.08.2021 through video conferencing. In compliance, newspaper publication dt. 27.07.2021 was made and the meeting was convened wherein the Scheme was approved by the Equity Shareholders.

4. Further, vide order dt. 15.11.2021, Chairperson's report dt. 02.09.2021 and Scrutinizer's Report 01.09.2021 were taken on record.

5. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows:

(i) **The Petition stands Admitted**.

(ii) **The date of hearing** of the Petition filed by the Applicant Companies for approval of the Scheme **is fixed for 04.02.2022.**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Business Standard" in English and "Business Standard" in Hindi (Delhi edition) in not less than 40 days before the aforesaid date fixed for hearing.

6. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely:

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, Delhi,

(d) The Jurisdictional Income Tax Authorities,

(e) Department of Telecommunications, Ministry of Communications, Government of India,

(f) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

7. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

8. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Sd/- 7/12/21

(AVINASH K. SRIVASTAVA)
Member (T)

Sd/- 2021

(ABNI RANJAN KUMAR SINHA)
Member (J)